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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:17-cv-02629-KMT

Propp et al v. American Family Mutual Insurance Company
Assigned to: Magistrate Judge Kathleen M. Tafoya
Case in other court: Jefferson County District Court, 2017cv31538
Cause: 28:1332 Diversity-Breach of Contract

Date Filed: 11/02/2017
Date Terminated: 05/09/2019
Jury Demand: Both
Nature of Suit: 110 Insurance
Jurisdiction: Diversity

Plaintiff**Daryll Propp**

represented by **Murray S. Wilkening**
Murray Wilkening, PC
7691 Shaffer Parkway
Suite B
Littleton, CO 80127
303-763-8988
Fax: 303-763-9065
Email: murray@mwilkening.com
ATTORNEY TO BE NOTICED

Plaintiff**Carol A. Propp**

represented by **Murray S. Wilkening**
(See above for address)
ATTORNEY TO BE NOTICED

V.

Defendant**American Family Mutual Insurance
Company**

represented by **Katie Berit Johnson**
Sutton Booker, P.C.
4949 South Syracuse Street
Suite 520
Denver, CO 80237
303-730-6204
Fax: 303-730-6208
Email: kjohnson@suttonbooker.com
ATTORNEY TO BE NOTICED

Sandy Marie Eloranto
Sutton Booker, P.C.
4949 South Syracuse
Suite 520
Denver, CO 80237
303-730-6204
Fax: 303-730-6208

Email: sandy.eloranto@clydeco.us
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
11/02/2017	1	NOTICE OF REMOVAL by American Family Mutual Insurance Company <i>Defendant</i> from District Court, Jefferson County, Case Number 2017cv31538. (Filing fee \$ 400, Receipt Number 1082-5789868), filed by American Family Mutual Insurance Company. (Attachments: # 1 Civil Cover Sheet, # 2 Supplemental Civil Cover Sheet, # 3 Exhibit A-Complaint, # 4 Exhibit B-Civil Cover Sheet-State, # 5 Exhibit C-Motion for Extension of Time, # 6 Exhibit D-Order for Motion for Extension of Time, # 7 Exhibit E-Second Motion for Extension of Time, # 8 Exhibit F-Order to Second Motion for Extension of Time, # 9 Exhibit G-Demand Letter, # 10 Exhibit H-Sec of State Document, # 11 Exhibit I-State Register of Actions, # 12 Exhibit J-State Notice of Removal)(Eloranto, Sandy) (Entered: 11/02/2017)
11/02/2017	2	FIRST AND FINAL NOTICE TO ATTORNEY(S) IN REMOVED, TRANSFERRED OR OTHER CASES: Pursuant to D.C.COLO.LCivR 11.1(a), an attorney must be a member of the U.S. District Court's bar to make an appearance and receive notice in any case before the court. The attorney records of the court reflect that the following counsel is a member of the U.S. District Court's Bar, but has not entered an appearance in this case: Murray Wilkening . In order to make an appearance in this case and receive any further notice regarding this case, counsel must file an entry of appearance in this case. Absent any Notice of Entry of Appearance filed, no further direct notices to counsel will be sent. Text only entry. (rsams,) (Entered: 11/03/2017)
11/02/2017	3	Case assigned to Magistrate Judge Kathleen M. Tafoya. Text Only Entry. (rsams,) (Entered: 11/03/2017)
11/02/2017	4	Magistrate Judge consent form issued pursuant to D.C.COLO.LCivR 40.1, direct assignment of civil actions to full time magistrate judges. (rsams,) (Entered: 11/03/2017)
11/03/2017	5	COMPLAINT AND JURY DEMAND against American Family Mutual Insurance Company, filed by Daryll Propp, Carol A. Propp.(rsams,) (Entered: 11/03/2017)
11/03/2017	6	CORPORATE DISCLOSURE STATEMENT. (Eloranto, Sandy) (Entered: 11/03/2017)
11/09/2017	7	NOTICE of Entry of Appearance by Murray S. Wilkening on behalf of All Plaintiffs Attorney Murray S. Wilkening added to party Carol A. Propp(pty:pla), Attorney Murray S. Wilkening added to party Daryll Propp(pty:pla) (Wilkening, Murray) (Entered: 11/09/2017)
11/09/2017	8	ANSWER to 5 Complaint <i>and jury demand</i> by American Family Mutual Insurance Company.(Eloranto, Sandy) (Entered: 11/09/2017)
11/13/2017	9	ORDER Setting Scheduling Conference for 12/27/2017 09:45 AM in Courtroom C201 before Magistrate Judge Kathleen M. Tafoya. Consent Form due by 12/20/2017, by Magistrate Judge Kathleen M. Tafoya on 11/13/17. (sgrim,) (Entered: 11/13/2017)
12/20/2017	10	CONSENT to Jurisdiction of Magistrate Judge by Defendant American Family Mutual Insurance Company All parties consent.. (Eloranto, Sandy) (Entered: 12/20/2017)
12/20/2017	11	Proposed Scheduling Order by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 12/20/2017)
12/27/2017	12	ORDER OF REFERENCE Upon Consent to Jurisdiction of Magistrate Judge: Pursuant to the parties' consent 10 and 28 USC 636(c), this case is referred to Magistrate Judge Tafyoa

		to fully preside over for all purposes. By Chief Judge Marcia S. Krieger on 12/27/17. Text Only Entry (msklc2,) (Entered: 12/27/2017)
12/27/2017	13	MINUTE ENTRY for Scheduling Conference held on 12/27/2017 before Magistrate Judge Kathleen M. Tafoya. Discovery due by 6/18/2018 and Dispositive Motions due by 7/16/2018. FTR: KMT Courtroom C201. (ipark,) (Entered: 12/28/2017)
12/27/2017	14	SCHEDULING ORDER:by Magistrate Judge Kathleen M. Tafoya on 12/27/2017. (ipark,) (Entered: 12/28/2017)
02/20/2018	15	MOTION for Protective Order by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 02/20/2018)
02/23/2018	16	MOTION for Protective Order by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit A)(Eloranto, Sandy) (Entered: 02/23/2018)
02/27/2018	17	MINUTE ORDER terminating 15 Motion for Protective Order; granting 16 Motion for Protective Order. The proposed protective order will be granted. By Magistrate Judge Kathleen M. Tafoya on 2/27/18. Text Only Entry (kmtlc1) (Entered: 02/27/2018)
02/27/2018	18	PROTECTIVE ORDER by Magistrate Judge Kathleen M. Tafoya on 02/27/2018. (ipark,) (Entered: 02/27/2018)
04/30/2018	19	Unopposed MOTION for Extension of Time to <i>Serve Expert Disclosures</i> by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 04/30/2018)
04/30/2018	20	MINUTE ORDER granting 19 Motion for Extension of Time to Serve Defendant's Expert Disclosures. Defendant shall serve its expert disclosures no later than May 14, 2018. By Magistrate Judge Kathleen M. Tafoya on 4/30/18. Text Only Entry (kmtlc1) (Entered: 04/30/2018)
06/18/2018	21	Unopposed MOTION for Extension of Time to <i>Extend Discovery Cut Off</i> by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 06/18/2018)
06/19/2018	22	MINUTE ORDER granting 21 Motion to Extend Discovery Cutoff. The discovery cutoff is extended to June 23, 2018, for the sole purpose of completing the deposition of Plaintiff's expert. By Magistrate Judge Kathleen M. Tafoya on 6/19/18. Text Only Entry (kmtlc1) (Entered: 06/19/2018)
07/11/2018	23	MOTION for Summary Judgment by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G)(Eloranto, Sandy) (Entered: 07/11/2018)
07/31/2018	24	RESPONSE to 23 MOTION for Summary Judgment filed by Plaintiffs Carol A. Propp, Daryll Propp. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 4) (Wilkening, Murray) (Entered: 07/31/2018)
08/14/2018	25	REPLY to Response to 23 MOTION for Summary Judgment filed by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit H, # 2 Exhibit I, # 3 Exhibit J)(Eloranto, Sandy) (Entered: 08/14/2018)
09/25/2018	26	ORDER granting 23 Motion for Partial Summary Judgment. Summary judgment is granted in favor of Defendant American Family Mutual Insurance Company and against Plaintiffs Daryll Propp and Carol A. Propp, on Plaintiffs claims related to total roof replacement, including breach of contract, bad faith, and unreasonable delay/denial claims, to the extent they relate to their claim for a total roof replacement, by Magistrate Judge Kathleen M. Tafoya on 9/25/2018. (jgonz,) (Entered: 09/25/2018)
09/25/2018	27	ORDER by Magistrate Judge Kathleen M. Tafoya on 9/25/2018. Proposed Final Pretrial Order due by 10/22/2018. Final Pretrial Conference set for 10/29/2018 09:15 AM in

		Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya. Lead counsel must attend the conference in person. (jgonz,) (Entered: 09/25/2018)
10/12/2018	28	MINUTE ORDER An informal Discovery Conference is set for 10/15/2018 at 04:00 PM before Magistrate Judge Kathleen M. Tafoya. The parties shall initiate a conference call and contact chambers, 719-575-0328, at the scheduled time. The parties shall use a LAND LINE; NO CELLULAR, CORDLESS OR SPEAKER PHONES ARE PERMITTED. By Magistrate Judge Kathleen M. Tafoya on 10/12/2018. Text Only Entry (kmtlc2) (Entered: 10/12/2018)
10/12/2018	29	Unopposed MOTION to Reset <i>Final Pretrial Conference</i> by Plaintiffs Carol A. Propp, Daryll Propp. (Attachments: # 1 Proposed Order (PDF Only))(Wilkening, Murray) (Entered: 10/12/2018)
10/15/2018	30	ORDER granting 29 Unopposed Motion to Vacate Final Pretrial Conference. The Final Pretrial Conference on October 29, 2018 at 9:15 a.m. is VACATED. Dates for further hearings will be set by separate Order. Entered by Magistrate Judge Kathleen M. Tafoya on 10/15/2018. Text Only Entry (kmt,) (Entered: 10/15/2018)
10/15/2018	31	COURTROOM MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Discovery Hearing held on 10/15/2018, Set/Reset Hearings:. Motion Hearing set for 12/5/2018 09:30 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya. FTR: COURTROOM 101. (ksena) (Entered: 10/16/2018)
10/29/2018	32	MOTION to Strike <i>Untimely and Cumulative Supplemental Expert Report</i> by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit A - Propp Expert Disclosure Certificate, # 2 Exhibit B - Frontier first report, # 3 Exhibit C - Amfam Expert Disclosure Certificate, # 4 Exhibit D - Paul Logan report and bid, # 5 Exhibit E - Frontier Supp report, # 6 Exhibit F- Frontier Supp report photo excerpts, # 7 Exhibit G - Propp Depo Excerpts)(Eloranto, Sandy) (Entered: 10/29/2018)
10/29/2018	33	MOTION in Limine <i>and Status Report</i> by Plaintiffs Carol A. Propp, Daryll Propp. (Attachments: # 1 Exhibit A to Plaintiff's Status Report, # 2 Exhibit B to Plaintiff's Status Report, # 3 Proposed Order (PDF Only) re Plaintiff's Status Report)(Wilkening, Murray) (Entered: 10/29/2018)
10/29/2018	34	MOTION in Limine by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit A - Amfam June 3 estimate, # 2 Exhibit B - Propp depo excerpts, # 3 Exhibit C- Amfam June 4 letter, # 4 Exhibit D - Amfam July 3 email contractors, # 5 Exhibit E - Propp July 19 letter, # 6 Exhibit F - Propp Sept 20 demand, # 7 Exhibit G - Logan report and bid, # 8 Exhibit H - Frontier email, # 9 Exhibit I - Policy, # 10 Exhibit J - Propp Aug 11 pay or sue, # 11 Exhibit K - 2010 skylight damage, # 12 Exhibit L - Propp discovery responses, # 13 Exhibit M - Release 2010, # 14 Exhibit N - map, # 15 Exhibit O - Plaintiffs disclosures, # 16 Exhibit P - Supp disclosures)(Eloranto, Sandy) (Entered: 10/29/2018)
10/29/2018	35	STATUS REPORT by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 10/29/2018)
10/30/2018	36	MOTION to Amend 34 Motion In Limine pursuant to D.C.COLO.LCivR 15.1 by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit Correct Motion in Limine PDF, # 2 Exhibit Exhibit A - Amfam June 3 estimate, # 3 Exhibit Exhibit B - Propp depo excerpts, # 4 Exhibit Exhibit C- Amfam June 4 letter, # 5 Exhibit Exhibit D - Amfam July 3 email contractors, # 6 Exhibit Exhibit E - Propp July 19 letter, # 7 Exhibit Exhibit F - Propp Sept 20 demand, # 8 Exhibit Exhibit G - Logan report and bid, # 9 Exhibit Exhibit H - Frontier email, # 10 Exhibit Exhibit I - Policy, # 11 Exhibit Exhibit J - Propp Aug 11 pay or sue, # 12 Exhibit Exhibit K - 2010 skylight damage, # 13 Exhibit Exhibit L - Propp discovery responses, # 14 Exhibit Exhibit M - Release 2010, # 15

		Exhibit Exhibit N - map, # 16 Exhibit Exhibit O - Plaintiffs disclosures, # 17 Exhibit Exhibit P - Supp disclosures)(Eloranto, Sandy) Modified on 10/30/2018 to correct event type(jgonz,). (Entered: 10/30/2018)
10/30/2018	37	MINUTE ORDER granting in part 36 Motion to Amend Motion in Limine Filing (Doc. No. 34). Defendant may refile its Motion in Limine and exhibits as a separate document no later than 5:00 p.m. on October 30, 2018. The 34 Motion in Limine is denied as moot/duplicative. By Magistrate Judge Kathleen M. Tafoya on 10/30/18. Text Only Entry (kmtlc1) (Entered: 10/30/2018)
10/30/2018	38	MOTION in Limine by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit Exhibit A - Amfam June 3 estimate, # 2 Exhibit Exhibit B - Propp depo excerpts, # 3 Exhibit Exhibit C- Amfam June 4 letter, # 4 Exhibit Exhibit D - Amfam July 3 email contractors, # 5 Exhibit Exhibit E - Propp July 19 letter, # 6 Exhibit Exhibit F - Propp Sept 20 demand, # 7 Exhibit Exhibit G - Logan report and bid, # 8 Exhibit Exhibit H - Frontier email, # 9 Exhibit Exhibit I - Policy, # 10 Exhibit Exhibit J - Propp Aug 11 pay or sue, # 11 Exhibit Exhibit K - 2010 skylight damage, # 12 Exhibit Exhibit L - Propp discovery responses, # 13 Exhibit Exhibit M - Release 2010, # 14 Exhibit Exhibit N - map, # 15 Exhibit Exhibit O - Plaintiffs disclosures, # 16 Exhibit Exhibit P - Supp disclosures)(Eloranto, Sandy) (Entered: 10/30/2018)
10/31/2018	39	MINUTE ORDER Resetting Hearing on Motions: The Motions Hearing regarding 32 MOTION to Strike Untimely and Cumulative Supplemental Expert Report, 33 MOTION in Limine, and 38 MOTION in Limine is RESET to 12/14/2018 at 10:00 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya. By Magistrate Judge Kathleen M. Tafoya on 10/31/18. Text Only Entry (kmtlc1) (Entered: 10/31/2018)
11/01/2018	40	MINUTE ORDER: The motions hearing set for 12/5/2018 is vacated. By Magistrate Judge Kathleen M. Tafoya on 11/1/18. Text Only Entry (kmtlc1) (Entered: 11/01/2018)
11/01/2018	41	NOTICE of Entry of Appearance by Katie Berit Johnson on behalf of American Family Mutual Insurance CompanyAttorney Katie Berit Johnson added to party American Family Mutual Insurance Company(pty:dft) (Johnson, Katie) (Entered: 11/01/2018)
11/09/2018	42	RESPONSE to 33 MOTION in Limine <i>and Status Report regarding supplemental expert report</i> filed by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 11/09/2018)
11/09/2018	43	RESPONSE to 32 MOTION to Strike <i>Untimely and Cumulative Supplemental Expert Report</i> filed by Plaintiffs Carol A. Propp, Daryll Propp. (Attachments: # 1 Exhibit 1) (Wilkening, Murray) (Entered: 11/09/2018)
11/09/2018	44	RESPONSE to 38 MOTION in Limine filed by Plaintiffs Carol A. Propp, Daryll Propp. (Wilkening, Murray) (Entered: 11/09/2018)
12/10/2018	45	MINUTE ORDER: Due to a family emergency, the motions hearing set for 12/14/2108 is VACATED and RESET to 1/23/2019 at 1:00 PM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya. By Magistrate Judge Kathleen M. Tafoya on 12/10/18. Text Only Entry (kmtlc1) (Entered: 12/10/2018)
12/27/2018	46	Unopposed MOTION to Reset <i>vacate and reset Motions Hearing Currently Coordinated for January 23, 2019</i> by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 12/27/2018)
01/03/2019	47	MINUTE ORDER granting 46 Motion to Vacate and Reset Motions Hearing Currently Coordinated for January 23, 2019. By Magistrate Judge Kathleen M. Tafoya on 1/3/19. Text Only Entry (kmtlc1) (Entered: 01/03/2019)

01/03/2019	48	MINUTE ORDER Setting Hearing on Motions: Motions Hearing set for 1/16/2019 at 2:00 PM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya regarding 32 MOTION to Strike Untimely and Cumulative Supplemental Expert Report, 33 MOTION in Limine, 38 MOTION in Limine. By Magistrate Judge Kathleen M. Tafoya on 1/3/19. Text Only Entry (kmtlc1) (Entered: 01/03/2019)
01/09/2019	49	NOTICE of Change of Address/Contact Information by Debra K. Sutton (Sutton, Debra) (Entered: 01/09/2019)
01/16/2019	50	COURTROOM MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Granting 32 Motion to Strike ; Denying 33 Motion in Limine; granting in part and denying in part 38 Motion in Limine; Motion Hearing held on 1/16/2019 ; Set/Reset Hearings:(Final Pretrial Conference set for 4/8/2019 10:30 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya., Jury Trial set for 5/6/2019 09:00 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya., Trial Preparation Conference set for 4/8/2019 at 10:30 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya., Jury Trial set for 5/7/2019 09:00 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya., Jury Trial set for 5/8/2019 09:00 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya., Jury Trial set for 5/9/2019 09:00 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya., Jury Trial set for 5/10/2019 09:00 AM in Courtroom 101 (Colorado Springs) before Magistrate Judge Kathleen M. Tafoya.). FTR: courtroom 101. (ksena) (Entered: 01/17/2019)
01/25/2019	51	ORDER Setting Trial and Trial Preparation Final Pretrial Conference. By Magistrate Judge Kathleen M. Tafoya on 01/25/2019. (ksena) (Entered: 01/25/2019)
03/25/2019	52	Unopposed MOTION for Extension of Time to <i>Submit Proposed Jury Instructions</i> by Plaintiffs Carol A. Propp, Daryll Propp. (Attachments: # 1 Proposed Order (PDF Only)) (Wilkening, Murray) (Entered: 03/25/2019)
03/26/2019	53	MINUTE ORDER granting 52 Motion for Extension of Time to Submit Proposed Jury Instructions. The parties shall file their proposed jury instructions no later than March 27, 2019. By Magistrate Judge Kathleen M. Tafoya on 3/26/19. Text Only Entry (kmtlc1) (Entered: 03/26/2019)
03/27/2019	54	Proposed Jury Instructions by Plaintiffs Carol A. Propp, Daryll Propp. (Wilkening, Murray) (Entered: 03/27/2019)
03/27/2019	55	Proposed Verdict Form by Plaintiffs Carol A. Propp, Daryll Propp. (Wilkening, Murray) (Entered: 03/27/2019)
03/27/2019	56	Proposed Jury Instructions <i>STIPULATED</i> by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 03/27/2019)
03/27/2019	57	Proposed Jury Instructions <i>DISPUTED</i> by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 03/27/2019)
03/27/2019	58	Proposed Verdict Form by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 03/27/2019)
04/01/2019	59	OBJECTIONS to <i>Defendant's Exhibits</i> by Plaintiffs Carol A. Propp, Daryll Propp. (Wilkening, Murray) (Entered: 04/01/2019)
04/01/2019	60	Proposed Voir Dire <i>Jury Questions</i> by Plaintiffs Carol A. Propp, Daryll Propp. (Wilkening, Murray) (Entered: 04/01/2019)

04/01/2019	61	Proposed Pretrial Order by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Plaintiffs' Exhibit List, # 2 Defendant's Exhibit List, # 3 Plaintiffs' Witness List, # 4 Defendant's Witness List)(Eloranto, Sandy) (Entered: 04/01/2019)
04/01/2019	62	OBJECTIONS to <i>Plaintiffs' Proposed Trial Exhibits</i> by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 04/01/2019)
04/01/2019	63	Proposed Voir Dire by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 04/01/2019)
04/05/2019	64	RESPONSE to 62 Objections to <i>Plaintiff Proposed Exhibits</i> by Plaintiffs Carol A. Propp, Daryll Propp. (Wilkening, Murray) (Entered: 04/05/2019)
04/08/2019	65	Exhibit List <i>Supplement to Final Pretrial Order</i> by Plaintiffs Carol A. Propp, Daryll Propp. (Wilkening, Murray) (Entered: 04/08/2019)
04/08/2019	66	Witness List <i>Supplement to Final Pretrial Order</i> by Plaintiffs Carol A. Propp, Daryll Propp. (Wilkening, Murray) (Entered: 04/08/2019)
04/08/2019	67	Proposed Jury Instructions <i>To Which Plaintiff Objects</i> by Defendant American Family Mutual Insurance Company. (Booker, Jacquelyn) (Entered: 04/08/2019)
04/08/2019	68	COURTROOM MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Final Pretrial Conference held on 4/8/2019. FTR: courtroom 101. (ksena) (Entered: 04/09/2019)
04/08/2019	69	FINAL PRETRIAL ORDER By Magistrate Judge Kathleen M. Tafoya on 04/08/2019. (Attachments: # 1 Exhibit Plaintiff supplemental exhibit list, # 2 Exhibit Plaintiff supplemental witness list) (ksena) (Entered: 04/09/2019)
04/29/2019	70	COURTROOM MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Final Pretrial Conference held on 4/29/2019. FTR: courtroom 101. (ksena) (Entered: 04/29/2019)
04/30/2019	71	TRIAL BRIEF <i>Regarding Calling Defendant's Expert as a Witness During Plaintiffs Case in Chief</i> by Plaintiffs Carol A. Propp, Daryll Propp. (Wilkening, Murray) (Entered: 04/30/2019)
04/30/2019	72	TRIAL BRIEF <i>Regarding Bad Faith Claims</i> by Plaintiffs Carol A. Propp, Daryll Propp. (Wilkening, Murray) (Entered: 04/30/2019)
04/30/2019	73	TRIAL BRIEF by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit A - PL expert disclosure, # 2 Exhibit B - DEF expert disclosure, # 3 Exhibit C - PL initial disclosure, # 4 Exhibit D - Carrol, # 5 Exhibit E - Pernix, # 6 Exhibit F - Frontier Excerpt)(Eloranto, Sandy) (Entered: 04/30/2019)
05/02/2019	74	Exhibit List (<i>Joint</i>) by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 05/02/2019)
05/03/2019	75	ORDER by Magistrate Judge Kathleen M. Tafoya on 05/03/19. This matter is before the court on the parties disagreement, expressed in competing trial briefs [Doc. Nos. 71 and 73] filed simultaneously on April 30, 2019, about whether the Plaintiff may call at trial in their case-in-chief expert witnesses designated by Defendant to provide rebuttal testimony [see Doc. 73-2]. ORDERED that Plaintiffs will not be allowed to present evidence from expert witness Paul Logan in their case-in-chief. (nmarb,) (Entered: 05/03/2019)
05/03/2019	76	STIPULATION <i>To Dismiss Bad Faith Claims</i> by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 05/03/2019)

05/06/2019	77	Proposed Jury Instructions <i>Joint stipulated revised</i> by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 05/06/2019)
05/06/2019	78	Proposed Jury Instructions <i>disputed revised</i> by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 05/06/2019)
05/06/2019	79	Proposed Verdict Form <i>revised</i> by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 05/06/2019)
05/06/2019	80	Proposed Jury Instructions <i>revised contract only</i> by Plaintiffs Carol A. Propp, Daryll Propp. (Wilkening, Murray) (Entered: 05/06/2019)
05/06/2019	81	Proposed Verdict Form <i>revised contract only</i> by Plaintiffs Carol A. Propp, Daryll Propp. (Wilkening, Murray) (Entered: 05/06/2019)
05/06/2019	82	COURTROOM MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Jury Trial Day 1 held on 5/6/2019. Court Reporter: Mary George. (ksena) (Entered: 05/07/2019)
05/07/2019	85	COURTROOM MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Jury Trial Day 2 held on 5/7/2019. Court Reporter: Mary George. (ksena) (Entered: 05/08/2019)
05/07/2019	87	ORDER Lunch will be provided to the jury during their deliberations. SO ORDERED by Magistrate Judge Kathleen M. Tafoya on 5/08/2019. By Magistrate Judge Kathleen M. Tafoya on 05/07/2019. Text Only Entry (ksena) (Entered: 05/09/2019)
05/08/2019	83	Proposed Jury Instructions <i>breach of contract</i> by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 05/08/2019)
05/08/2019	84	Proposed Verdict Form by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 05/08/2019)
05/08/2019	86	Proposed Jury Instructions <i>juror experience</i> by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 05/08/2019)
05/08/2019	88	COURTROOM MINUTE ENTRY for proceedings held before Magistrate Judge Kathleen M. Tafoya: Jury Trial day three completed on 5/8/2019. Court Reporter: Mary George. (Attachments: # 1 Exhibit joint exhibit list) (ksena) (Entered: 05/09/2019)
05/08/2019	89	Jury Strike Sheet - Unredacted - Level 3 - Viewable by Court Only. (ksena) (Entered: 05/09/2019)
05/08/2019	90	Jury Instructions 1-30 (ksena) (Entered: 05/09/2019)
05/08/2019	91	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (ksena) (Entered: 05/09/2019)
05/08/2019	92	JURY VERDICT. (ksena) (Entered: 05/09/2019)
05/08/2019	93	ORDER Regarding Custody of Exhibits and Depositions. by Magistrate Judge Kathleen M. Tafoya on 05/08/2019. (ksena) (Entered: 05/09/2019)
05/09/2019	94	FINAL JUDGMENT in favor of American Family Mutual Insurance Company against Daryll Propp and Carol A. Propp. by Clerk on 05/09/2019. (ksena) (Entered: 05/09/2019)
05/23/2019	95	Proposed Bill of Costs by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit B, # 2 Exhibit C, # 3 Exhibit E, # 4 Exhibit K, # 5 Exhibit L, # 6 Exhibit M, # 7 Exhibit G, # 8 Exhibit F)(Eloranto, Sandy) (Entered: 05/23/2019)

05/23/2019	<u>96</u>	STIPULATION re <u>95</u> Proposed Bill of Costs, by Defendant American Family Mutual Insurance Company. (Eloranto, Sandy) (Entered: 05/23/2019)
05/29/2019	<u>97</u>	Costs Taxed by Clerk in the amount of \$4,586.07 against Plaintiffs Daryll and Carol Propp and in favor of Defendant American Family Mutual Insurance Company pursuant to Stipulation. The hearing of May 30, 2019 is vacated. (kmatt) (Entered: 05/29/2019)

PACER Service Center			
Transaction Receipt			
04/07/2026 00:07:00			
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Description:	Docket Report	Search Criteria:	1:17-cv-02629-KMT
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